

HCS HBs 1663, 1607 & 1973 -- PARTICIPATION IN ATHLETICS
COMPETITIONS

SPONSOR: Seitz

COMMITTEE ACTION: Voted "Do Pass with HCS" by the Standing Committee on Emerging Issues by a vote of 9 to 4. Voted "Do Pass" by the Standing Committee on Rules-Administrative by a vote of 6 to 3.

The following is a summary of the House Committee Substitute for HBs 1663, 1607, & 1973.

Currently, schools can only allow students to compete in athletics competitions designated for the student's biological sex, as indicated on the student's official birth certificate. Except that female students may participate in athletics competitions designated for male students if no corresponding competition for female students is offered.

This provision is set to expire on August 28th, 2027. The bill removes the expiration date for this language.

This bill is similar to HB 36 and HB 113(2025).

The following is a summary of the public testimony from the committee hearing. The testimony was based on the introduced version of the bill.

PROPOSERS: Supporters say that when biological differences between males and females are ignored by school officials, women's sports participants suffer greatly. Having two separate sports teams for boys and girls creates a level playing field and promotes fairness. Supporters further state that a number of female athletes have been injured during athletic contests when biological men participate in those games. Such injuries result because of the physical differences between male and females, in terms of bone structure and muscle mass, which in turn gives the male athletes a tremendous unfair advantage.

Testifying in person for the bill were Representative Seitz; Liberty Link Missouri; Missouri Catholic Conference; Ella Percival; and Sierra Smith.

OPPONENTS: Those who oppose the bill say that the central argument has nothing to do with athletic fairness, but is rather about a discriminatory policy being leveled against a minority

group. Young people who have transitioned just want to participate in sports and spend time with friends and classmates. Opponents further state that this bill sends the clear message that transgender youth do not belong, and that further marginalization will result. Opponents state that the struggle transgender youth have endured in their attempts to compete in certain sports activities is similar to the struggle that biological women suffered before Title IX was passed into law.

Testifying in person against the bill were Suzanne McGinnis; Abortion Action Missouri; Abby Ellison Land; Dava-Leigh Brush, Missouri Equity Education Partnership; Nicholas Tatum; Samantha Jones; Cammie Storm; Candice N. Moran, Psy. D.; Elaine Brune; Jennifer Pepper; Katy Erker-Lynch, PROMO; Kyle Freels; Lear Rose; Lori Marie Martin; May Hall; Michael Walk; Nicholas Tatum; Rene Freels; Rhiannon Trask; American Civil Liberties Union of Missouri; Stevie Miller; and Dean Anderson.

Written testimony has been submitted for this bill. The full written testimony and witnesses testifying online can be found under Testimony on the bill page on the House website.